

District: Chattogram

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CIVIL REVISIONAL JURISDICTION)

Present

Mr. Justice Sardar Md. Rashed Jahangir

Civil Revision No. 2009 of 2022

In the matter of :

Moinuddin

... Petitioner

-Versus-

Moriom Khatun and others

...Opposite parties

Mr. S.M.Tariqul Islam, Advocate

...For the petitioner

Mr. M.A. Azim Khair, Senior Advocate with

Mr. Humayun Kabir, Advocate

...For the opposite party No. 1 and 2

Heard on: 24.10.2024

Judgment on: 03.11.2024

Rule was issued on an application under section 115(1) of the Code of Civil Procedure calling upon the opposite party Nos. 1 and 2 to show cause as to why the judgment and order dated 03.02.2022 passed by the Joint District Judge, Third Court, Chattogram in Review Miscellaneous Case No. 14 of 2013 rejecting the application filed under Order XLVII, rule 1 read with section 151 of the Code of Civil Procedure against the judgment

and decree dated 11.03.2013 passed by the Joint District Judge, Third Court, Chattogram in Other Class Appeal No. 80 of 2006 should not be set aside and/or such other or further order or orders as to this Court may seem fit and proper.

The present petitioner along with others filed Other Class Suit No. 97 of 1999 before the Court of Assistant Judge, Hathhajari, Chattogram impleading the opposite party Nos. 1 and 2 for redemption of mortgage, recovery of khas possession and for a declaration that the recording of B.S. khatian prepared and published in the name of defendants is false, incorrect, void and not binding upon the plaintiffs and the deeds, the basis of the claim of defendants are false, fabricated, inoperative and not binding upon the plaintiffs.

After hearing both the parties, learned Assistant Judge, Hathhajari, Chattogram by his judgment and decree dated 14.02.2006 dismissed the suit on contest against the contesting defendants.

Having been aggrieved by the aforesaid judgment of learned Assistant Judge, plaintiffs preferred Other Class Appeal

No. 80 of 2006 before the District Judge, Chattogram, which on transfer heard by the Joint District Judge, Third Court, Chattogram and by his judgment and decree dated 11.03.2013 dismissed the appeal affirming the judgment and decree dated 14.02.2006 passed by the Assistant Judge, Hathajari in Other Class Suit No. 97 of 1999.

On being aggrieved by and dissatisfied with the aforesaid judgment and decree of learned Joint District Judge, the plaintiffs filed an application under Order XLVII, rule 1 read with section 151 of the Code of Civil Procedure for review of the judgment and decree dated 11.03.2013 passed by the same Court in Other Class Appeal No.80 of 2006. The grounds of review application is reproduced herein below:

“১। বিজ্ঞ আপীল আদালত কর্তৃক ইহা বিবেচনায় নেওয়া উচিত ছিল যে, যে তারিখে কবলাদ্বয়মূলে বিবাদীপক্ষ উক্ত সম্পত্তি বর্ণিতভাবে বন্ধক নিযুক্তিতে নিজ স্বত্ত্ব দখলে পাইয়াছে মর্মে উল্লেখ করিয়াছে উক্ত কবলাদ্বয় মুক্তিযুদ্ধ চলাকালীন সময়ে **disturbed period** এ সংঘটিত দলিল হয়। বাদীপক্ষ যেক্ষেত্রে উক্ত কবলাদ্বয় জাল মর্মে বক্তব্য রাখিয়াছে এবং উক্ত কবলাদ্বয়ের সংস্থাপিত বক্তব্য বাস্তব অবস্থা এবং অবস্থানের বিপরীতমুখী হয় এবং অধিকন্তুভাবে যেইক্ষেত্রে উক্ত কবলাদ্বয়ের এবারতে অদ্য হইতে খাস দখলীয় জমি থানি ছাড়িয়া দেওয়ার বিষয় উল্লেখ আছে সেইক্ষেত্রে বন্ধকের সহিত সম্পূর্ণ অসামঞ্জস্যপূর্ণ এবং বিপরীতমুখী

উক্তির সন্নিবেশনা করার এবারতে থাকায় উক্তরূপ গুরুত্বপূর্ণ বিষয়ে মাননীয় আদালত সমীপে যথাযথভাবে বিচার বিবেচনার নিমিত্ত উপস্থাপিত না হওয়ায় এবং ইহা Discovery of important fact বিধায় হুজুর আদালত কর্তৃক প্রদত্ত রায় পুনঃ বিবেচনার ব্যাপারে একটি মৌলিক উপাদানযুক্ত বিষয় হয়।

২। বিজ্ঞ আদালতের ইহাও অনুধাবন করা উচিত ছিল যে, যে ক্ষেত্রে বন্ধকমূলে কেবলমাত্র ১ কানি জায়গা বিবাদীর দখলে পর্যাগত করার বিষয়ে সুনির্দিষ্ট বক্তব্য বাদীপক্ষে আসিয়াছে এবং বাকী ৬ গন্ডা জায়গা বাদীপক্ষের দখলে আছে মর্মে আর্জিতে এবং স্বাক্ষীতে উল্লেখ আছে এবং বিবাদীপক্ষের স্বীকৃতমতে যেই ক্ষেত্রে বাদীগণ বন্ধকী জায়গার উপরে গৃহাদি বন্ধনে কথিতভাবে অনুমতি স্বত্বে দখলে থাকার বিষয়েও উল্লেখ করিয়াছে। সেই ক্ষেত্রে বাদীর নেওয়া কথিত কবলা দখলের ক্ষেত্রে যে পুরাপুরিভাবে কার্যকরী হয় নাই ইহাও একটি গুরুত্বপূর্ণ পয়েন্ট বটে, যাহা বিজ্ঞ আদালত সমীপে যথাযথভাবে বিচার বিবেচনায় গ্রহণ করার ব্যাপারে উপস্থাপিত হয় নাই এবং দ্রুপ আংগিকে ও ভাবধারায় বিচারও হয় নাই। ইহা একটি Discovery of important fact বিধায় এবং পুনঃ বিবেচনা সংক্রান্ত ব্যাপারে Sufficient Cause বিধায় উক্ত কারণে ও হুজুর আদালত কর্তৃক প্রদত্ত রায় পুনঃ বিবেচনা যোগ্য বটে।

৩। বিজ্ঞ আদালতের ইহাও দেখা উচিত ছিল যে, নাদাবীপত্র বাদীপক্ষ কর্তৃক স্বীকৃত দলিল নহে। ইহাও কবলাদ্বয়ের মত জাল দলিল হওয়া মর্মে বাদীপক্ষের সুনির্দিষ্ট বক্তব্য রহিয়াছে এবং স্বাক্ষীতেও আসিয়াছে। অধিকন্তুভাবে ইহার এবারত পর্যালোচনা করিলে দেখা যাইবে যে, কতক নাবালক পক্ষে মাতা কর্তৃক সম্পাদিত দলিল হওয়া মর্মে দলিলে উল্লেখ রহিয়াছে। নাবালকের পক্ষে অনুমতি গ্রহণ ব্যতীত মাতা কোন দলিল সম্পাদন এবং রেজিস্ট্রীতে মঞ্জুরী প্রদান করিলে ইহা Ipso-facto void দলিল হয়। হুজুর আদালত এতদরূপ আইনগত

বিষয়ে বিচার বিবেচনায় না আনায় এবং একইভাবে উপস্থাপিত না হওয়ায় ইহাও একটি Mistake apparent on the fact of the record and review সংক্রান্ত sufficient cause বিধায় উক্ত কারণে ও হুজুর আদালত কর্তৃক প্রদত্ত রায় পুনঃ বিবেচনাযোগ্য বটে।

৪। অপরাপর আইনগত এবং বাস্তবতার নিরিখে অপরাপর বিষয়াদি হুজুর সমীপে শুনানীর সময় বাচনিকভাবে নিবেদন করা হইবে।”

After hearing learned Joint District Judge by his judgment and order dated 03.02.2022 rejected the application for review holding that the applicant could not show any apparent error on the face of record or any other sufficient cause for reviewing the judgment and decree dated 11.03.2013.

Mr. S.M. Tariqul Islam, learned Advocate for the petitioner submits that the plaintiffs filed the redemption suit and it is an admitted fact that the predecessor of the plaintiffs, Abdul Kader by registered deeds of mortgage being Nos.3151 and 3152 dated 01.11.1958 mortgaged and thereby handed over the property to the predecessor of defendant Nos. 1 and 2. On the same day, a reconveyance deed being No.3152 dated 01.11.1958 was also executed and registered between the parties with a stipulation that if the mortgagor repay the consideration money within 15(fifteen)

years from the date of execution then the mortgagee will return back the property in question in favour of the mortgagor, the tenure of the mortgage was scheduled to be ended on 01.11.1973 and during subsisting of the mortgage period the President's Order No.88 of 1972 has come into force, introducing the provision of section 95A in the State Acquisition and Tenancy Act, 1950 (in short the SAT Act). According to the said provision every mortgage with an agreement of reconvey shall be deemed to be a complete usufructuary mortgage for a period not exceeding 7(seven) years and as per the said provision the mortgaged property has been redeemed or released soon after promulgation of the President's Order. Non-consideration of the aforesaid provision will come within the purview of other sufficient cause as stipulated in the provision of Order XLVII, rule 1 of the Code of Civil Procedure and as such, the said provision ought to have considered in the review filed by the plaintiffs-petitioners. He further submits that the “না দাবীপত্র” dated 02.05.1965 allegedly executed by the plaintiffs is not a title document and through which the defendants did not acquire any valid title upon the disputed property. Moreover, the registered kabala deeds dated

22.05.1971 were challenged by the plaintiffs as forged and fabricated documents created by the defendant Nos. 1 and 2 by way of forgery and through which the defendants did not acquire any right, title over the disputed land. The non-consideration of the provision of the President's Order No.88 of 1972 and taking into consideration the aforesaid “না দাবীপত্র” and saf kabala deeds are illegal which are apparent on the face of the record and thus, learned Joint District Judge committed an error of law in not considering the review application filed by the plaintiffs-petitioners.

In support of his submission, he referred the case of Bangladesh Vs. Hazi Abdul Gani Biswas and others reported in 32 DLR(AD) 233, the case of Lakshmi Bala Sen and others Vs. Tarun Tapan Dutta alias Tapan Kumar Dutta and others reported in 66 DLR(AD) 162 and the case of Budhimante Bose and others Vs. Ajnacharan Biswas and others reported in 17 BLC 674.

On the other hand, Mr. M.A. Azim Khair, learned Senior Advocate appearing with Mr. Humayun Kabir, Advocate for the added opposite party No.2A and submits that the benefit of

section 95(A) of the SAT Act is not available for the plaintiffs-petitioners; because, the mortgage was closed transaction and ended before the said provision has come into force and there is no apparent error in the judgment and decree of learned Judge of the appellate Court as well as in the case record to invoke jurisdiction of review provided under Order XLVII, rule 1 of the Code of Civil Procedure. In course of hearing, Mr. Khair submitted an elaborate written submission, which is reproduced herein below:

“1. Admittedly Abdul Kader (Predecessor of Plaintiff- Petitioner) transferred the suit property in favor of Ahmadur Rahman (Predecessor of Defendant) by two sale deed being nos. 3151 and 3152 dated 01.11.1958; at the same time, an agreement for re-conveyance was executed and registered stipulating if the transferor repay the consideration money within 15 (fifteen) years from the date of execution of agreement the transferee would execute and register sale deed in favor of the transferor.

2. By Section 95 of the State Acquisition and Tenancy Act a restriction has been imposed upon the

Rayat "Not to enter any form of usufructuary mortgage other than complete usufructuary mortgage" and the period of such complete usufructuary mortgage shall not exceed by any agreement express or implied, 15(fifteen) years; (subsequently amended 7 (seven) years).

3. Meanwhile, on 03.08.1972 President's Order No. 88 of 1972 was incorporated in The State Acquisition and Tenancy Act wherein the provision has been made for treatment of certain transaction of usufructuary mortgage which is as follows:

"95A. Notwithstanding anything contained in any other law for the time being in force, any transfer of a holding or of a portion or share thereof, where the transferor receives from the transferee any consideration and the transferee acquires the right to possess, and to enjoy the usufruct of such holding or portion or share thereof for a specified period in lieu of such consideration, shall notwithstanding anything contained in the document relating to the transfer, be deemed to be a complete usufructuary mortgage for a period not exceeding seven years and the provisions of Section 95 shall apply to such transfer whether made before or after the date of commencement of the State Acquisition and Tenancy (Second Amendment) Order, 1972."

4. *The plaintiff- petitioner relying on the said provision of Section 95A of the State Acquisition and Tenancy Act on 26.09.1999 filed the suit for redemption of mortgage along with certain ancillary relief on the allegation that the sale deed and the agreement for re-conveyance were executed on 01.11.1958 and in the agreement for re-conveyance it was stipulated that "If the transferor within 15 years repay the consideration money the transferee would execute and register a proper sale deed in favor of transferor"; and therefore, in view of the provision of Section 95A of The State Acquisition and Tenancy Act the transaction has to be treated as complete usufructuary mortgage and hence the plaintiffs are entitled to redeem the said mortgaged property.*

5. *It is submitted that prior to enactment of President's Order No. 88 of 1972 an agreement for re- conveyance used to be treated as a simple agreement for sale but Section 95A has incorporated the provision to treat such an agreement to re-convey as complete usufructuary mortgage with a rider clause to the effect that "notwithstanding anything contained in the document relating to the transfer, be*

deemed to be a complete usufructuary mortgage for a period not exceeding seven years".

6. In view of such provision of law the aforesaid transaction that took place on 01.11.1958 be deemed to be a complete usufructuary mortgage for a period not exceeding seven years notwithstanding anything contained in the document relating to the transfer.

7. As the period of such mortgage limited to 7 years the right accrued on the basis of agreement dated 01.11.1958 was remain in force till 01.11.1965 and after expiry of said date the transaction was not subsisting; and it has been held by a decision reported in 32 DLR (AD) 233 at paragraph 11.. (4) those transactions which are subsisting on the date of promulgation of President's Order No. 88 of 1972 are hit by Section 95A including the transaction entered into by way of an out and out sale with an agreement to recovery, made whether before or after the promulgation of President's Order No. 88 of 1972. (5) as for the transactions which are not alive before the promulgation of President's Order No. 88 of 1972 they are concluded by the transactions past and closed. Said principle subsequently followed by

the Hon'ble Appellate Division in many cases including 16 BLD (AD) 210 where it is held that "To attract the application of Section 95A of the Act the transaction in question must be a subsisting one on the date of promulgation of President's Order No. 88 of 1972 on 03.08.1972. Transactions which were not alive on that date are to be treated as transactions past and closed.

8. In view of the principle as envisaged in above decisions, the plaintiff-petitioner cannot get benefit of Section 95A to redeem the mortgage and therefore, the courts below rightly dismissed the suit and the review application is nothing but a futile exercise hence the review court committed no error of law in rejecting the review application calling interference by this Hon'ble Court."

Heard learned Advocates of both the parties, perused the revisional application together with the annexures appended thereto and having gone through the provisions of law and the cited judgments.

It appears that the instant revisional application is arisen out of an order of rejection of an application for review filed under

Order XLVII, rule 1 of the Code of Civil Procedure. The Code conferred the authority upon the Court to review its judgment and decree, stipulating specific limitation and scope under which the given authority can be exercised. Order XLVII provides for the review of judgments. But the scope of such review is very limited. Review of judgment maybe allowed on 3(three) grounds, namely, (i) Discovery of new and important matter of evidence which, after the exercise of due diligence was not within the knowledge of the applicant or could not be produced by him at the time when the decree was passed or order was made, or (ii) Some mistake or error apparent on the face of the record, or (iii) For any other sufficient reason (which has been interpreted through many authorities to be analogous to the others reason specified above).

As this Court finds earlier, the authority of review is very limited and can be exercised within the language employed in Order XLVII, rule 1 of the Code of Civil Procedure and in absence of any such element as quoted in the rule, the Court has no authority to review its judgment or order. It cannot be allowed on the mere ground that at a later stage the petitioner considered

that the previous order is wrong or not in accordance with law; because, once the Court passed a decree, it becomes functus officio.

The contention of Mr. Tariqul Islam, learned Advocate for the petitioner seems to be meritorious, but such criticism should be advanced not before the Court under the form of review application, but before a higher Court in appeal or revision under sections 96 or 115 of the Code (Revision against the judgment and decree of the appellate Court). Jurisdiction of review does not depend upon a strong or meritorious argument.

The parameters to invoke the jurisdiction of review are specifically prescribed in Order XLVII of the Code of Civil Procedure. The former part of the rule deals with a situation attributable to the applicant, and the latter to a jural action, which is manifestly incorrect or illegal or on which two conclusions are not legally possible. Neither of them provide any scope of rehearing of the dispute anew to the petitioner.

In the present review application, the petitioner sought for review of the judgment and decree of the appellate Court below,

mainly on 3(three) grounds, first one, both the Court's below wrongly taken into consideration the “না দবীনামা” deed dated 02.04.1965, allegedly executed by the plaintiffs and their mother (proforma defendant No.5), through which no title was conferred upon the defendants, despite both the Courts below considered the side document (প্রদর্শনী-ঙ) and the next ground of review was that the plaintiffs challenged the deeds (two deeds) allegedly executed and registered in the year, 1971, during the ‘disturbed period’, through which the defendants claimed the title subsequently, in spite of that both the Courts below believed the aforesaid two documents (প্রদর্শনী-ঘ-১ এবং ঘ-২) and dismissed the suit as well as the appeal and the third one, (which was not taken in the review application or argued before the Court of appeal below, but taken before this Court in revisional stage) during subsisting of the mortgage period the President's Order No.88 of 1972 has come into force, providing the provision that notwithstanding anything contained in any mortgage deed or any other sale deed with an agreement to reconvey, where the transferor receives from the transferee any consideration and whereby the transferee acquires right to possess and enjoyment the usufruct of the property, the

said transfer shall deem to be a complete usufructuary mortgage for a period not exceeding 7(seven) years and learned Judge of the appellate Court below failed to consider the aforesaid provision.

From the judgment of the appellate Court below as well as the trial Court, it appears that the learned Judges have taken into consideration and believed the “না দাবীনামা” deed of the year 1965 in deciding the case. Learned Advocate for the petitioner contended that ‘না দাবীনামা’ deed independently cannot confer any title upon any person. This Court is in agreement with the aforesaid submission, although ‘না দাবীনামা’ deed does not confer any title, but it can be used as co-lateral or associate evidence together with the other registered instrument. In the case in hand, the principal document, i.e. the mortgage deed in question executed in the year 1958 and considering the ‘না দাবীনামা’ deed together with the mortgage deed of the year 1958 is not an error on the face of record; although, there is scope of an arguable case, whether believing and considering that document together with the mortgage deed is legally sound or not, but that argument is to

be considered in a different jurisdiction not in review under order XLVII of the Civil Code.

The question of believing or disbelieving the deeds executed in the year 1971, during the liberation war cannot be a ground of review, because it is a mere question of fact depends upon availability of evidences within the record for satisfaction of the Courts below, and the said question of believing cannot be termed as an apparent error on the face of the record. For sake of argument, if the said consideration is not even a sound one or seems to be erroneous, such a criticism cannot be looked into on a review application filed under Order XLVII, rule 1 within it's limited scope. So far the third ground is concerned, taken by the petitioner before the High Court Division in the instant revision, it is true section 95A of the SAT Act provides that notwithstanding anything contained in any document relating to mortgage or sale with a further condition of reconvey, shall be deemed to be a complete usufructuary mortgage for a period not exceeding 7(seven) years. Meaning thereby, from the deed in question if the said provision is attracted in any case, then after expiry of

7(seven) years the executed mortgage shall be ended treating it as an usufructuary mortgage and the property is liable to be reconveyed and released in favour of the mortgagor. In the said provision it is also stipulated that the provision of section 95 of the SAT Act shall apply to such transfer, in particular, sub-section (4) and (5) shall apply to such transaction whether made before or after the date of commencement of the State Acquisition and Tenancy Order (P.O.No.88 of 1972). Meaning thereby, the mortgagor after expiry of 7(seven) years from the date of execution of the mortgage deed shall be entitled to invoke jurisdiction provided under section 95 sub-section (4) and (5) of the SAT Act before the Sub-divisional Magistrate or to any officer empowered by the Government for that purpose of restoration of the land or possession in favour of the mortgagor. Admittedly, the petitioner opted to file the redemption suit without invoking the jurisdiction under section 95 of the SAT Act, thus, the onus heavily lies upon the plaintiff to prove that the transaction or mortgage was alive on the date of promulgation of the President's Order No.88 of 1972 and the transaction was not a past and closed one, i.e. till 03.08.1972 the status of the mortgaged property

having not been changed and it was legally redeemable without any change. In the judgment of the appellate Court below, learned Judge found that the mortgage has been ended in the year, 1971 by 2(two) registered saf kabala deeds and the Judge also relied upon a deed of ‘না দাবীনামা পত্র’ executed in the year, 1965. Believing or disbelieving any documents or evidences cannot be a ground of review treating such judicial findings of fact as an apparent error on the face of the record.

For challenging the aforesaid consideration or aforesaid documents, the plaintiffs-petitioners ought to have invoked the other jurisdiction available under the Code of Civil Procedure; but in an application for review there is hardly any scope to consider those grounds. And if the mortgage is ended or the transaction is closed before the promulgation of the President’s Order No.88 of 1972, then section 95A of the SAT Act has no application, because, there is nothing alive to restore or redeem. Moreover, without taking any such ground or argument before the Court concerned against whose judgment the review is sought for, there is hardly any scope to consider such new ground in revision

before the High Court Division against the rejection of review application.

The cited judgments are of no assistance to improve the petitioners' case; because, in all of those cases the party concerned invoked the jurisdiction of sections 95(4) and (5) of the SAT Act, applying before the Sub-divisional Magistrate, the simple questions were there to restore the land or its possession.

In the premise above, this Court finds no illegality in rejecting the review application by the Court of appeal below against the judgment and decree dated 11.03.2013 passed in Other Class Appeal No. 80 of 2006.

Accordingly, the Rule is discharged without any order as to cost.

Send down the Lower Courts' Record.

Communicate the judgment and order at once.